

Sunil Kumar Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 February 2015 · Criminal Misc. Writ Petition No. 2951 of 2015 · **FIR under s.135 not quashed; arrest, if made, to follow CrPC 41(1)(b)/41-A; compounding under ESC 2005 left to the petitioner.**

HEADNOTE

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence will not be quashed. Where arrest has not yet been made and the offence cannot attract a sentence of more than seven years, police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sunil Kumar Pal petitioned the Allahabad High Court to quash the first information report dated 14 November 2014, Case Crime No. 1152 of 2014, registered under Section 135 of the Electricity Act at Police Station Hari Parwat, District Agra. He had not been arrested. Counsel submitted that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The State appeared through the Additional Government Advocate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash refused

HOLDING

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not to be quashed. Arrest, if effectuated for an offence that will not entail a sentence of more than seven years, must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Applied to refuse quashing of a s.135 FIR while directing that any arrest for an offence not exceeding seven years follow CrPC 41(1)(b)/41-A and leaving compounding to the Electricity Supply Code, 2005. ¶ 1